

File No. CP _____

IN THE COURT OF QUEEN'S BENCH
FAMILY DIVISION
CHILD PROTECTION

IN THE MATTER OF: *The Child and Family Services Act*, C.C.S.M. c. C80

Between:

_____ **CHILD AND FAMILY SERVICES,**
petitioner,
- and -

_____/

respondents.

PRE-HEARING BRIEF OF AGENCY

Law firm for Agency

PRE-HEARING BRIEF OF AGENCY

Counsel:

for Mother:

for Father:

for Agency:

(with social worker _____)

for Child:

for Other:

Children's names, dates of birth and ages:

Date of apprehension:

Previous CFS orders (include number of months in care):

Previous VPAs (include number of months in care):

Total number of months in care since apprehension (including VPA and order time):

Family law proceedings/orders:

YCJA order(s) affecting child:

Application:

1. ☐ Supervision Order
2. ☐ Temporary Guardianship Order
3. ☐ Permanent Guardianship Order
4. ☐ Alternate placement Order (s.38(1)(b) or private guardianship)
5. ☐ Other: _____

Trial dates:

Service

Mother ☐ Yes ☐ No ☐ Substitutional ☐ Dispensed
Affidavit filed _____

Father (1) ☐ Yes ☐ No ☐ Substitutional ☐ Dispensed
Affidavit filed _____

Father (2) ☐ Yes ☐ No ☐ Substitutional ☐ Dispensed
Affidavit filed _____

Other ☐ Yes ☐ No ☐ Substitutional ☐ Dispensed
Affidavit filed _____

Children over 12 years (before trial date) ☐ Yes ☐ No

Name: _____ **Name:** _____

Child consents ☐ Yes ☐ No **Child consents** ☐ Yes ☐ No

Date: _____

Witnesses

Number of Witnesses You Intend to Call: _____

Names: (1) _____ (2) _____
(3) _____ (4) _____
(5) _____ (6) _____

Number of Expert Witnesses You Intend to Call: _____

(1) Name: _____ Area of expertise _____

Resume/Assessment/Report(s) Disclosed ☐ Yes ☐ No

(2) Name: _____ Area of expertise _____

Resume/Assessment/Report(s) Disclosed ☐ Yes ☐ No

(3) Name: _____ Area of expertise _____

Resume/Assessment/Report(s) Disclosed ☐ Yes

Schedule A

Without Prejudice Matters to be Discussed at Pre-Trial

Brief description of identification of the precipitating event leading to the apprehension, the context and any relevant historical information, and the case plan

Issues for trial

Schedule A will be filed into "B" file following the pre-trial.

The Pre-Hearing Brief will be given to the trial judge